



Appeal Decision

Site visit made on 28 August 2026

by **G Ellis BSc (Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 15 September 2026

Appeal Ref: 6011691

Church Cottage, 10 East Lane, West Horsley, Surrey, KT24 6HL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Duncan Roe against the decision of Guildford Borough Council
 - The application Ref is 26/P/00241.
 - The development proposed is a single storey orangery to the rear elevation.
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Decision

1. The appeal is dismissed.

Procedural and Preliminary Matters

2. On 17 August 2026, a revised National Planning Policy Framework (the Framework) was published. The parts of the Framework relevant to this appeal have not substantively changed. I have therefore not sought further submissions. I have had regard to the latest version of the Framework where relevant in this appeal.

Main Issues

3. The main issues are: -
 - Whether the proposed development amounts to inappropriate development in the Green Belt, having regard to the Framework, and any relevant development plan policies;
 - The effect on the openness of the Green Belt; and
 - If the proposed development amounts to inappropriate development in the Green Belt, whether the harm by reason of inappropriateness and any other harm is clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

Reasons

Inappropriate Development

Background

4. The Framework identifies that the objective of Green Belt policy is to prevent urban sprawl by keeping land permanently open. Policy GB6 of the Framework explains that development in the Green Belt is inappropriate unless it falls within one of the categories set out in Policy GB7. Policy GB7 1b includes the reuse, extension,

alteration or replacement of an existing building and advises that, in relation to extensions, it would be inappropriate development if it would result in a disproportionate increase in size compared to the original building.

5. Policy P2 of the Guildford Borough Local Plan: Strategy and Sites adopted 25 April 2019 (LPSS) generally reflects the Framework and also sets out at 2(a) a definition of the original building as either: *The building as it existed on 1 July 1948; or if no building existed on 1 July 1948, then the first building as it was originally built after this date.*
6. There is no definition of disproportionate in either the Framework or local policy. While the Council's Green Belt Supplementary Planning Document (SPD) provides some guidance on the factors to be considered and indicates the need for some flexibility, it is a matter of judgement.

Baseline

7. Neither party provide details of when the house was first built, nor are there any plans before me. The Council do, however, indicate that the floor space of the original building was 197 sqm and that, together with the various existing alterations to the property, including a large barn outbuilding, the proposed development would result in a total floor area of 607 sqm. An increase of some 208%.
8. The appellant calculates things differently and considers that the combined increase, with the proposal, would only be 61%. This figure is derived from combining the floor area of the original house and that of the barn, to form the baseline from which the size increase is calculated.
9. The large barn outbuilding, which is located approximately 12m to the side of the house, was brought to the site in the 1990s, sometime after the house would have been built. Whilst it previously existed elsewhere, it was dismantled and relocated here, and at that stage it was a new addition to Church Cottage. As such, it was not part of the first building on site, nor was it there in 1948. Consequently, it does not form part of the original building.
10. There is a judgement as to whether the barn should be considered as an extension to the house or a separate building, for the purposes of any Green Belt assessment. Nonetheless, either way, this does not change the original floor area of the building as 197sqm as the baseline figure from which the extensions are assessed.

Extensions

11. The Council describe the property as having started as a modest dwelling. From my on-site observations and the planning history, which includes a range of extensions and alterations from 1992 onwards, the property has been extensively extended. I do not have a full breakdown of the floor areas associated with the extensions, but deducting the barn's original floor area of 173 sqm (as noted in the appellant's appeal statement) would result in a cumulative increase in floor area of 237 sqm (120%) based on the Council's figures.
12. The appellant's overall figure for the total floorspace is lower than the Council's at 582sqm, although the reason for this is unclear, nor is any rationale provided as to why the pool house, which is on site, should not be included in the overall figure.

13. Even allowing for a margin of error in the figures, it would represent a substantial increase in size. If the large barn was also added as an extension, the increase would self-evidently be significantly greater.

Overall

14. I acknowledge that the assessment is not just restricted to a numerical calculation and that the proposed orangery itself would be a relatively modest addition of 25sqm. Nonetheless, cumulatively with the other extensions, even without the barn, the scale of development cannot be considered anything other than a disproportionate addition over and above the size of the original building.
15. The proposal would therefore constitute inappropriate development in the Green Belt contrary to policy GB7 of the Framework and LPSS policy P2 together with the Council's SPD.

Openness

16. One of the essential characteristics of Green Belts is their openness has two dimensions: spatial and visual. The spatial dimension relates to the physical scale of the development itself whereas the visual dimension is the extent to which the development can be seen.
17. The proposal would be a single-storey, primarily glazed structure to be located within the L-shaped form of the building. The house is set back from the road within a large, enclosed plot, and as such the extension would not be seen from East Lane. I therefore conclude that its visual impact on the wider Green Belt would be minimal. It would, however, whilst limited, have a spatial impact through the increased footprint of built form on the site.

Harm

18. Inappropriate development is, by definition, harmful to the Green Belt as set out in Policy GB6(2) of the Framework. In addition, as set out above, there would be limited spatial and minimal visual harm to openness. Nonetheless, in accordance with the Framework, substantial weight should be given to these harms to the Green Belt.

Other considerations

19. The appellant has referred to a number of other appeal decisions and applications to support their case. The specific details of all the various extensions set out in the appellant's table are not before me, but they involve lower percentage increases in floor area, than what I have found to be the position here, and/or a smaller proposed development. While recognising the need for consistency in decision making, each proposal is to be considered on its own merits, and comparisons of heights and forms of other extensions elsewhere do not change my assessment of this case.
20. The proposal would not have any adverse impact on the neighbours and is appropriate in terms of the scale and design of the existing house. There is also no objection from third parties or the Parish Council. However, these do not constitute benefits of the proposal, with good design and appropriate amenity levels required in line with other policies. The development would incorporate measures to support sustainability objectives related to waste and storage at the construction stage.

There would also be some economic benefits from that stage, although these would be temporary and, given the scale of the development, it would be a modest benefit.

Planning Balance

21. Even taken together, the other considerations put forward provide limited support for the scheme. Therefore, they do not outweigh the harm to the Green Belt that I have identified, and very special circumstances do not exist. The proposed extension would therefore fail to accord with policy P2 of the LPSS and the Framework, and there are no other material considerations to outweigh that finding.

Conclusion

22. Therefore, for the reasons given, the appeal is dismissed.

G Ellis

INSPECTOR